

25STCV18732 25STCV18732

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Case Number: 25STCV18732 Hearing Date: July 8, 2026 Dept: 400

MOTION

TO COMPEL

The Court tenders the following tentative decision in the matter Richard Ricketts v. Los Angeles County Metropolitan Transportation Authority, Los Angeles County Superior Court case number 25STCV18732, set for hearing on July 8, 2026. Los Angeles County Metropolitan Transportation Authority (Defendant) moves for an order compelling Richard Authom Ricketts (Defendant) to serve responses to Defendant's form interrogatories (FROGs), set one and special interrogatories (SPROGs), set one. Defendant also requests \$1,750 in sanctions. Plaintiff's motion to compel is granted and sanctions are awarded in the reduced amount of \$875.

If a party

to whom interrogatories are directed fails to serve a timely response, that party waives any objection, the party making the demand may move for an order compelling response, and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion unless they acted with substantial justification. (Id., § 2030.290.)

Here, Plaintiff filed the present action on June 27, 2025.

Defendant served all relevant written discovery requests via email on January 26, 2026. (Kohrs Decl. ¶ 2.) Plaintiff had still not served any responses as of the filing of the present motion on June 1, 2026. (Id. ¶ 3.) Thus, Plaintiff failed to timely serve responses and has waived all objections. Because of Plaintiff's failure to respond to the relevant discovery requests within the allotted timeframe, Defendant's motion to compel discovery pursuant to Code of Civil Procedure section 2030.290 is proper.

Sanctions are warranted against a party that unsuccessfully opposes a motion to compel discovery. (Code Civ. Proc., § 2030.290, subd. (c).) Such sanctions are proper even if no brief in opposition is filed. (Rules of Court, rule 3.1348(a).) But the Court need not impose sanctions with respect to a motion to compel if the Court finds that circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) Here, in failing to file an opposition, Plaintiff offers no reasonable explanation as to why responses were not timely provided. Thus, Plaintiff has opposed the present motions to compel without substantial justification, warranting sanctions.

Defendant's counsel alleges an hourly rate of \$350 which the Court credits. (Kohrs Decl. ¶ 4.) Defendant's counsel alleges 2 hours spent drafting the present motion, 1 hour spent reviewing the opposition and drafting a reply, and 2 hours preparing for the hearing. (Id. ¶ 5.) Because of the simplicity of the present motion and lack of any opposition, the Court instead credits counsel with 1.5 hours spent drafting the present motion and 1 hour spent preparing for and attending the hearing on this matter. Accordingly, the Court awards \$875 in sanctions $[(2.5 \text{ hours}) \times \$350 \text{ per hour}] = \875 .

Conclusion:

The Court grants Defendant's motion and imposes sanctions in the reduced amount of \$875 on Plaintiff.